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|    | Industries of California, Inc.<br>Case No. 30-2022-01238888 |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 53 | Liu vs. Le<br>Case No. 30-2023-01319093                     | <p>Specially Appearing Defendant Lucy Pham Le ("Ms. Le") moves for an order quashing service of summons and complaint on the grounds that she was not properly served. Subsequent to the filing of the motion, Ms. Le was apparently personally served in a manner she deemed satisfactory. (ROA 21). On 6/20/23, Ms. Le made filed an answer and cross-complaint (ROAs 27-28.)</p> <p>CCP §418.10(e)(1) provides that "[n]otwithstanding Section 1014, no act by a party who makes a motion [to quash service or stay or dismiss action] under this section, including filing an answer, demurrer, or motion to strike constitutes an appearance, unless the court denies the motion made under this section. If the court denies the motion made under this section, the defendant or cross-defendant is not deemed to have generally appeared until entry of the order denying the motion."</p> <p>Although the filing of her answer and cross-complaint do not yet constitute a general appearance—due to the fact that Ms. Le filed the instant motion—the only relief sought by way of this motion is for an order that Plaintiff serve Ms. Le correctly. (Mtn. at 11:1-5.)</p> <p>As Ms. Le has already received the relief sought, the motion is DENIED as MOOT.</p> <p><i>Plaintiff to give notice.</i></p> |
| 54 | Shin vs. An<br>Case No. 30-2023-01328986                    | <p>Defendant Kenneth H. An ("Defendant") moves to quash service of summons on the grounds that Plaintiff Keum Sook Shin's ("Plaintiff") purported service on him by mail on July 21, 2023 was not made according to any of the statutorily authorized methods.</p> <p>Section 418.10(a)(1) authorizes a defendant to file and serve a notice of motion to quash service of summons on the ground of lack of jurisdiction. When a defendant challenges that jurisdiction by bringing a motion to quash, the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service." (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1439-1440.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |